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End User License Agreement & Terms Of Service

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4. Additional Terms for Subscription

5. Intellectual Property Rights

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7. Special Notice for International Use; Export Controls.

8. Advertisements and External Sites.

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End User License Agreement And Terms Of Service - EEA

END USER LICENSE AGREEMENT AND TERMS OF SERVICE

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Privacy Policy

Effective Date: September 8, 2025

Scope and Purpose of This Policy

This Privacy Policy ("Policy") applies to tunein.com, the TuneIn mobile application, and any other websites, applications, widgets, products, services, and other on- and offline offerings (collectively, the "Services") owned and operated by TuneIn, Inc. and our affiliates and subsidiaries (collectively, "TuneIn," "we," "us," or "our"). This Policy covers our treatment of the Personal Information we gather through our Services.

This Policy explains how TuneIn may collect, use, process, disclose and safeguard information we obtain through the Services. It also tells you about your rights and choices with respect to your Personal Information, and how you can contact us if you have any questions or concerns. TuneIn is the data controller for the purposes of this Policy.

If you are a California resident, please also see our **California Resident Privacy Notice.**

If you wish to opt out of TuneIn's "sharing" of your Personal Information for cross-contextual advertising purposes, please click "Your Privacy Choices" in the footer section on tunein.com.

How TuneIn Collects Your Information

For the purpose of this Privacy Policy, "**Personal Information**" means any information relating to an identified or identifiable individual. We obtain Personal Information relating to you from various sources as described below.

Where applicable, we indicate whether and why you must provide us with your Personal Information, as well as the consequences of failing to do so. If you do not provide Personal Information when requested, you may not be able to benefit from our Services if that information is necessary to provide you with the Services or if we are legally required to collect it.

Personal Information You Provide

User Account Registration. If you register as a user of the Services, you must provide us with your name, email address, year of birth, and password in order to create an account. You may also optionally add to your profile certain demographic information, such as your country, zip code and gender, as well as your photo.

Broadcaster Account Registration. If you are a broadcaster, we ask you for information about your station and broadcast(s) when you register on our Services, including your name, email address, phone number, website, content streaming URL, as well as background information on the station and broadcast(s).

Communications. We will collect any information which you provide to us through your communications with our customer support team, such as through email or social media. If you complete one of our surveys, we will collect your responses and may ask you to provide Personal Information such as your gender, age, general location, and ask you to participate in future surveys.

Business Partner and Vendor Information. We may receive contact details of business partners' and vendors' employees as provided by business partners or vendors in furtherance of the relevant partner or vendor relationship.

Events. We may collect personal information (either directly from individuals or from other sources such as event hosts or co-sponsors) in an online or offline capacity when we attend conferences, trade shows, and other events.

Sweepstakes and Contests. We may collect Personal Information as part of sweepstakes or contests.

Job Applications. We will collect any information which you provide to us when you apply for a job with TuneIn, including your curriculum vitae and references.

Personal Information Obtained from Third Parties

Social Sign-on. We collect information from social media services when you use your credentials for these services to log into the Services. For example, when you log in with your Facebook credentials, we collect the information you have authorized Facebook to share with us, such as your name, email address, gender, date of birth, and profile picture. We may also obtain other non-public information with your permission.

Other Third Parties. We may collect information about you from other third parties, including our marketing partners.

Personal Information Collected Automatically

Your Activities on the Services. When you use the Services, we collect information about your activities, such as the stations, artists or channels that you listen to, transaction details related to your Subscription, the user profiles that you view, your searches for friends or stations and your other actions and interactions with other users or content on the Services, the stations, content and people that you follow ("Follow Lists"), your comments, any content that you post on the Services, and any other information resulting from your use of the Services that is publicly accessible by other users ("Public Information").

Your Contacts. If you use certain features of our Services, such as the share content feature, we will collect information about your contacts, with your permission.

Location Information. Depending on your device settings, we may obtain information about your physical location at regular intervals when you use the Services, such as by use of geolocation features in the device(s) through which you access the Services. In addition, we may infer your location from other information we collect (for example, your IP address indicates the general geographic region from which you are connecting to the Internet).

Device Information. We receive information from the device through which you access the Services, such as IP address, web browser type, mobile operating system version, and unique device identifiers.

Widget Information. Other websites may integrate TuneIn widgets (such as the TuneIn Player or TuneIn Follow Button). When you visit a site with a TuneIn widget embedded, we may receive certain information, including

information about the web page you visited, your IP address, and other information about your device. TuneIn and the widget can recognize you across websites containing TuneIn widgets, and the widget may be used to show personalized content or advertising. We know when you interact with a widget, and websites containing the widgets may receive this information.

Cookies and Related Technologies. When you visit the Services, we and our third party service providers receive and record information from your browser and from cookies, pixels, and similar technologies. Learn more about how we use cookies and related technologies in our **Cookie Policy**.

Pixels. A pixel is a small piece of code on a web page, in an email notification, or within audio content that typically works in conjunction with cookies to identify users and record user behavior. We use pixels—including audio pixels—to learn whether you have interacted with certain web, email, or audio content. This helps us measure and improve the Service and personalize your experience.We also use audio pixel technology within our Services to measure and attribute the effectiveness of audio advertising campaigns. Audio pixels are digital tracking pixels that enable us to match users who heard audio ads to users who subsequently performed certain actions, such as visiting websites, making purchases, or downloading apps. This technology collects information including device identifiers, IP addresses, listening session data, timestamps of ad exposure, and subsequent user actions across websites and applications. We use this information to optimize ad targeting, measure campaign performance, analyze audience engagement, and provide attribution reporting to advertisers. Audio pixel data may be shared with our advertising partners and third-party measurement providers for campaign measurement and optimization purposes. You can manage your preferences regarding audio pixel tracking through your account privacy settings, though opting out may impact the relevance of advertisements you receive.

Google Analytics. We use Google Analytics to obtain information about your behavior on our Services. We may use this information to improve user experience and improve our products. If you'd like to opt-out, we recommend installing Google's browser add-on that can be found at **https://tools.google.com/dlpage/gaoptout**.

How We Use Personal Information

We use Personal Information for many business reasons, including:

Providing Services

- Managing information and accounts, including user accounts, partner accounts, and vendor/service provider accounts
- Providing access to certain areas, functionalities, and features of our Services
- Providing you with personalized services, content, offers, and recommendations. For example, we may analyze your listening history to recommend similar content that we think would be of particular interest to you, send you tailored content recommendations based on your location, or send you personalized marketing communications based on Personal Information we have collected about you
- Answering requests for customer or technical support
- Communicating with you about your account, activities on our Services, and policy changes
- Processing your financial information and other payment methods for products or Services purchased
- Allowing you to register for events

Marketing and Advertising

- Tailoring and providing you with content, such as email updates, newsletters, and social media content

- We and our advertising partners may use your Personal Information, including your location and your activities on the Services to facilitate the delivery of advertisements
- Offering sweepstakes, contests, or other optional marketing events. Note that in some jurisdictions, we are required to publicly share information of sweepstakes and contest winners.

Other Administrative Purposes

- Pursuing our legitimate interests such as direct marketing, research and development (including marketing research), network and information security, and fraud prevention
- Detecting security incidents, protecting against malicious, deceptive, fraudulent or illegal activity, and prosecuting those responsible for that activity
- Measuring interest and engagement in our Services
- Improving, upgrading or enhancing our Services
- Developing new products and Services
- Ensuring internal quality control and safety
- Authenticating and verifying individual identities, including requests to exercise your rights under this policy
- Debugging to identify and repair errors with our Services
- Auditing relating to interactions, transactions and other compliance activities
- Enforcing our agreements and policies
- Complying with our legal and contractual obligations, including using location information to comply with radio stations' content licenses (which are location-specific)

Consent

We may also use personal information for other purposes that are clearly disclosed to you at the time you provide Personal Information or with your consent, we also use your information for other purposes as requested by you or as permitted by applicable law.

Aggregate Data

We may de-identify and aggregate information collected through the Services for statistical analysis and other lawful purposes.

How We Disclose Personal Information

Station and Channel Partners. We may disclose certain limited information to our station and channel partners regarding listening activity on their stations and channels. The information we disclose may include device information (for example, IP address, web browser type, mobile operating system version, and unique device identifiers); general geographic information (for example, zip code, city, state, region, and/or country); listening session starts, durations, and timestamps; and search terms used to find the station or channel partner's content. Our station and channel partners may use this information for their research and marketing purposes, or as otherwise disclosed in their respective privacy policies.

Advertising Partners. We may share Personal Information with our third-party advertising partners to provide ads that we think may interest you.

These third-party advertising partners may combine or link the data we provide them with other data about you,

such as demographic data, including data collected from other offline and online sources, such as other websites and mobile apps.

We may share your Personal Information with our third-party advertising partners to provide ads that we think may interest you. For more information about our advertising and marketing practices and those of the third party advertising partners, as well as information regarding how to opt out of interest-based advertising, please see our **Cookie Policy**.

Non-affiliated Companies. If we receive your permission, non-affiliated companies may use your Personal Information to send you offers or other information that you may find of interest.

Social Networking and Other Websites. The Services may allow you to share Personal Information with social networking services, such as Facebook. We do not share your Personal Information with third-party websites unless you direct the Services to share it. Third-party websites' use of your Personal Information is governed by their privacy policies.

Other Users. Your Public Information, which includes your Favorites, is viewable by other users, unless you change your account settings to make your Favorites private. However, if you registered for the Services prior to May 7, 2014, then your Favorites will be private unless you change your profile settings to make them publicly accessible.

Your profile information, such as any photographs, your username, and any content that you post in your account, is also viewable by other users. We are not responsible for the privacy practices of other users. Accordingly, we recommend that you carefully consider what you post to the Services before doing so.

Other Third Parties. We may also share Personal Information about you in the following additional circumstances:

- **With Your Consent.** We may disclose your Personal Information with your permission. We may seek your permission in various ways. For example, we may present you with an "opt-in" prompt when you register to use the Services or access certain content.
- **To Comply with Legal Obligations.** We may access, preserve, and disclose your Personal Information or other account information if we believe doing so is required or appropriate to (i) comply with laws, law enforcement requests, and legal process, such as a court order or subpoena; (ii) respond to your requests; or (iii) protect your, our, or others' rights, property, or safety.
- **In case of Merger, Sale, or Other Asset Transfers.** If we are involved in a merger, acquisition, financing due diligence, reorganization, bankruptcy or liquidation where the business will not continue as a going concern, receivership, sale of TuneIn assets, or transition of the Services to another provider, then your Personal Information may be sold or transferred as part of such a transaction as permitted by law and/or contract. The use of your Personal Information following any of these events should be governed by the provisions of this Privacy Policy in effect at the time the applicable information was collected.

If you are located in the European Economic Area ("EEA"):

- We only process your Personal Information based on a valid legal ground, including when you have consented to the use of your Personal Information, for example, to provide you with tailored advertising.
- We need your Personal Information to provide you with the Services, including for account registration, to respond to your inquiries or, if you are a broadcaster, to manage the directory listing and for support.
- We have a legal obligation to use your Personal Information, such as the obligation to protect intellectual property rights and restrict content available on the Services based on your location.

- We or a third party have a legitimate interest in using your Personal Information. In particular, we have a legitimate interest in using your Personal Information to personalize our Services and provide you with tailored content, conduct business analytics and otherwise improve the safety, security, fraud prevention, and performance of our Services. We only rely on our or a third party's legitimate interests to process your Personal Information when these interests are not overridden by your rights and interests.

Data Retention

We generally retain Personal Information for as long as necessary to fulfill the purposes for which we collected it, including for the purposes of satisfying any legal, financial, or reporting obligations, to establish or defend legal claims, or for compliance and protection purposes.

To determine the appropriate retention period for Personal Information, we may consider factors such as:

- The amount, nature, and sensitivity of the Personal Information
- The impact to the Services, including the possibility for re-enrollment with the Services
- The potential risk of harm from unauthorized use or disclosure of your Personal Information
- The purposes for which we process your Personal Information
- Whether we can achieve those purposes through other means
- Applicable legal requirements, including mandatory retention periods, statutes of limitation, legal holds, and litigation requirements

When we no longer require the Personal Information we have collected about you, we may either delete it, anonymize it, or isolate it from further processing.

Note that in some cases, even if you submit a data deletion request, we may be required to retain your Personal Information, such as to comply with the law; maintain records of transactions; exercise, establish, or defend legal claims; or protect against fraud or abuse of our systems.

Security

We maintain administrative, technical and physical safeguards that are intended to appropriately protect Personal Information against accidental or unlawful destruction, accidental loss, unauthorized alteration, unauthorized disclosure or access, misuse, and any other unlawful form of processing of the Personal Information in our possession. Unfortunately, the Internet cannot be guaranteed to be 100% secure, and we cannot ensure or warrant the security of any Personal Information you provide to us.

Third-Party Websites

This Privacy Policy applies only to the processing of your Personal Information by TuneIn. The Services may contain links to third-party sites, such as third-party content providers ("Third-Party Sites"). The policies and procedures described in this Privacy Policy do not apply to Third-Party Sites. The links from the Services to any Third-Party Sites do not imply that we endorse or have reviewed the Third-Party Sites or their privacy practices.

Children's Privacy

We do not knowingly collect, maintain, or use Personal Information, as defined by the Federal Trade Commission's Children's Online Privacy Protection Act Rule, from children under 13 years of age, and no part of the Services is directed to children under the age of 13.

If you are located in the EEA, we do not knowingly collect, maintain, or use Personal Information from children under 16 years of age, and no part of the Services are directed to children under the age of 16.

If you are located in Mexico, we do not knowingly collect, maintain, or use Personal Information from children under 18 years of age, and no part of the Services are directed to children under the age of 18.

If you are located in Brazil, we do not knowingly collect, maintain, or use personal sensitive information, as it is defined in the applicable law. We will only collect, maintain, or use any personal sensitive information pursuant to your previous and express consent.

If you believe that your child has provided us with Personal Information, please alert us by contacting us below. If we learn that we have collected any Personal Information from a child (as defined by local law), we will promptly take steps to delete such information and terminate the child's account.

Health Data

TuneIn collects information about the content you interact with on the Services, such as when you listen to or search for stations, podcasts, or audiobooks or add them to your "favorites" list. If you interact with content relating to health, TuneIn does not use information about your interaction to identify your past, present, or future physical or mental health status. Nevertheless, this information may be considered "Health Data" (or an equivalent term) in certain jurisdictions.

To the extent your interactions with health-related content are considered Health Data, TuneIn does not collect Health Data except when you interact with such content. The categories of Health Data TuneIn collects from you, if any, will depend on the type of content with which you interact. TuneIn uses and discloses Health Data only as necessary to provide the Services you request. For instance, TuneIn may disclose Health Data contained in your searches and listening activity with our service providers, such as content delivery networks and data storage facilities, to deliver content to you and protect our Services. TuneIn does not use or share Health Data for targeted advertising purposes.

Some jurisdictions provide specific data subject rights around Health Data, including:

- Right to know: Individuals may confirm whether TuneIn is collecting, sharing, or selling Health Data about them, including a list of all third parties and affiliates with whom TuneIn has shared or sold the Health Data
- Access: Individuals may access their Health Data
- Individuals may delete their Health Data
- Individuals may withdraw consent for collecting and sharing Health Data, if applicable

If you wish to exercise your right to know, or submit a request for access to or deletion of your personal information including Health Data, please submit a request through TuneIn's Privacy Center.

TuneIn's collection of Health Data from you, if any, and our use of that data is necessary to provide the Services you request. As such, if you wish for TuneIn to stop collecting Health Data from you, discontinue using the TuneIn Services to access or interact with health-related content.

Data Transfers

If you are visiting the Services from regions with laws governing data collection and use, then please note that you are agreeing to the transfer of your Personal Information to TuneIn, its affiliates and subprocessors in the United States. Each time you use the Services, Personal Information will be transferred to the United States via information and communications networks. If you wish to object to the transfer of your Personal Information to

the United States, please contact us as described below. Note that TuneIn's Services will not function without allowing data transfer to the United States.

If you are located in the EEA, United Kingdom, Switzerland or Brazil, we comply with EU, United Kingdom, Switzerland, or Brazil data protection law, as applicable to you, when transferring your Personal Information outside of the EEA, United Kingdom, Switzerland, or Brazil. In particular, we may transfer your Personal Information to non-EEA countries, including to the United States where we are headquartered.

TuneIn protects Personal Information from the EEA, United Kingdom, and Switzerland according to the standards of the EU-U.S. Data Privacy Framework ("DPF"). To learn more, read our **DPF Policy**.

Your Choices and Rights

Your Privacy Rights

Depending on where you are located, you may have the right to:

- **Access to Data**: You may request a copy of Personal Information we have about you in a portable format and/or request us to transfer all or some of this data to a third party.
- **Correction of Data**: You may request that we update, correct, or rectify personal information we have about you.
- **Deletion of Data/Account Deletion**: You may request that we delete personal information we have about you, which will also delete your TuneIn account. **Click here to request a deletion.**
- **Restriction of or Object to Processing**: You may have the right to opt in or opt out of certain uses of your Personal Information, or to object to all processing of your Personal Information, or to withdraw consent you previously gave for the processing of your Personal Information.
- **Supervisory Authority**: If you are located in the European Economic Area, Switzerland, the United Kingdom or Brazil, you have the right to lodge a complaint with a supervisory authority if you believe our processing of your Personal Information violates applicable law.

These rights may be limited in some circumstances by local law requirements. You may exercise these rights by clicking "Make a Privacy Request" at the top of this page, or by contacting us as described below.

You have the right not to receive discriminatory treatment for the exercise of your privacy rights. If you wish to appeal a decision relating to your data rights request, please contact us at **privacy@tunein.com**.

Privacy Settings and Choices

Account Information. Once you have registered for the Services, you may change your profile settings in your account on the Services. For example, you can change the email address and password associated with your account and you may choose to keep your Follow Lists private. If you are a broadcaster, you can change the information you provided to us by contacting us per the information below.

Favorites. Once you have registered for the Services, you may change your profile information at any time to make your Favorites private. If you registered for the Services prior to May 7, 2014, then your Favorites will be private until you sign into your account, at which time they will be made public.

Devices. You can access the Services from multiple devices if you sign into your account on the devices or register them on the Services. If you would like to disconnect your account from any of these devices, you can unregister the device through your account settings on the Services.

Location Information. You can prevent us from collecting location information from your device by changing the settings on your device, if your device allows you to do so; however, if you do not provide us with location information you may not be able to fully use the Services. Please note that we will continue to receive your IP address and use it as described above to determine, for example, your location to comply with our licensing agreements.

Communications Opt-Out. Each marketing email communication we send you will contain instructions permitting you to unsubscribe from future marketing communications. You may also contact us as indicated below to have your name deleted from our email mailing lists, or you may update your communication preferences in your account settings on our Website. Please note, however, that certain communications, such as push notifications, require you to change the settings on your device if you wish not to receive any future communications. In addition, on occasion we may send service-related announcements, such as disruption notifications, via email and you may not be able to opt out of these communications.

Targeted Advertising Opt-Out. More information on targeted advertising and your choices about the advertising you receive can be found in our **Cookie Policy.**

If you wish to opt out of targeted advertising, please set your privacy preferences within the privacy preference center accessible at the bottom of our website or within the Settings menu in the TuneIn app. Note that depending on your jurisdiction, the "Privacy Settings" link may look different.

Audience Information. When you use our app, The Nielsen Company (US), LLC and Comscore, Inc. collect information on behalf of TuneIn about your use of the Services.

Accessibility

This Privacy Policy uses industry-standard technologies and was developed in line with the World Wide Web Consortium's Web Content Accessibility Guidelines, version 2.1. If you wish to print this policy, please do so from your web browser or by saving the page as a PDF. If you need further assistance regarding the accessibility of this webpage, please contact us as described below.

Updates to This Policy

We will post any adjustments to the Privacy Policy on this web page, and the revised version will be effective when it is posted.

Contact Us

If you have any questions, would like to exercise your rights or share suggestions for improving the Privacy Policy or the Services, or otherwise would like to contact us, then please feel free to contact us per the information below.

TuneIn, Inc.

1875 Mission Street

Suite 103 # 397

San Francisco, CA 94103

United States

privacy@tunein.com

If you are located in the EEA and would like to raise a question to us about your Personal Information, or otherwise exercise your rights in respect of your Personal Information, then you may contact us per the information below.

TuneIn GmbH, Inc.

Zimmerstrasse 78,

10117 Berlin, Germany

privacy@tunein.com

If you are located in the United Kingdom or Switzerland and would like to raise a question to us about your Personal Information, or otherwise exercise your rights in respect of your Personal Information, then you may also contact our respective data protection representative noted below.

DataRep, United Kingdom

107-111 Fleet Street

London, EC4A 2AB, United Kingdom

tunein@datarep.com

https://www.datarep.com/data-request/

DataRep, Switzerland

Leutschenbachstrasse 95

ZURICH, 8050, Switzerland

tunein@datarep.com

https://www.datarep.com/data-request/